

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #07	CCRB Case #: 201900155	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 01/03/2019 6:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/17/2021	Precinct: 68
Date/Time CV Reported Sat, 01/05/2019 11:28 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 01/05/2019 11:28 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Fernando Caches	11749	945153	068 PCT
2. SGT Christophe Caminiti	02528	950145	068 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brendan Finnigan	22644	963031	068 PCT
2. POF Katie Mcmanamon	20516	964159	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Fernando Caches	Force: Police Officer Fernando Caches used physical force against § 87(2)(b)	A . Unfounded
B . SGT Christophe Caminiti	Abuse: Sergeant Christopher Caminiti did not process § 87(2)(b)'s complaint regarding officers.	B . Unsubstantiated

Case Summary

On January 5, 2019, § 87(2)(b) filed the following complaint via the CCRB's online complaint form. On January 6, 2019, IAB received a duplicate of this complaint.

On January 3, 2019, at approximately 6:00 p.m., § 87(2)(b) and another motorist almost got into a car accident, near the intersection of Bay Ridge Avenue and 5th Avenue in Brooklyn. § 87(2)(b) and the motorist were involved in a physical altercation, which resulted in both sustaining injuries. Police Officer Fernando Caches, Police Officer Katie Mcmanamon, and Sergeant Christopher Caminiti, all of the 68th Precinct, responded, and § 87(2)(b) and the other motorist were both arrested. § 87(2)(b) requested medical attention due to pain from the altercation, and was transported to § 87(2)(b) by PO Caches and PO Mcmanamon.

In the Emergency Department of § 87(2)(b) a nurse asked the officers to remove § 87(2)(b)'s handcuffs in order to take his blood pressure. PO Mcmanamon initially tried to remove them, and when she was unable to, PO Caches assisted her. § 87(2)(b) alleged that PO Caches became frustrated with the handcuffs, lifted § 87(2)(b)'s arms upward, and threw him to the floor (**Allegations A: Force, unfounded**).

On January 4, 2019, § 87(2)(b) went to the 68th Precinct stationhouse to collect his property, wherein Sgt. Caminiti allegedly refused to take § 87(2)(b)'s complaint regarding officers from the 68th Precinct (**Allegation B: Abuse of Authority, unsubstantiated**).

The investigation obtained five Body-Worn Camera ("BWC") videos from the involved officers (BR01-BR05), however, they only capture the initial incident at the scene, and do not capture the further interactions at the § 87(2)(b). The investigation also obtained security camera footage from with the emergency department of § 87(2)(b) (BR06) which partially captures the relevant section to this incident.

Findings and Recommendations

Allegation A—Force: Police Officer Fernando Caches used physical force against § 87(2)(b)

On January 3, 2019, at approximately 6:00 p.m., § 87(2)(b) and a Lyft driver engaged in a physical altercation in the vicinity of the intersection of 5th Avenue and Bay Ridge Avenue in Brooklyn (BR07). § 87(2)(b) initially denied that either he or the Lyft driver punched or otherwise struck each other during the physical altercation, however, he immediately altered his statement, and said he and the driver did punch each other. § 87(2)(b) denied that he bit the unidentified driver's face, as noted in the arrest report, but acknowledged that the driver's face was bleeding but did not know what caused it. § 87(2)(b) initially denied he told officers that the driver punched him on the left side of his face, as noted in the AIDED report. However, when asked where the driver punched him, § 87(2)(b) stated, "My face," but later denied that the driver ever punched him in the face.

After the altercation, § 87(2)(b) called 911 and asked for police and EMS to respond because he was having back pain after the altercation, and from a prior injury. Soon after, PO Caches, PO Mcmanamon, Sgt. Caminiti and PO Finnegan responded. § 87(2)(b) told PO Caches and PO Mcmanamon what happened with the driver, and two EMTs approached and asked § 87(2)(b) if he wanted to go to the hospital. § 87(2)(b) said yes and the EMTs escorted him into the ambulance.

Upon arrival to § 87(2)(b) PO Caches and PO Mcmanamon removed § 87(2)(b) from the ambulance and escorted him inside. § 87(2)(b) asked PO Mcmanamon to loosen his handcuffs

multiple times within § 87(2)(b) but she refused. After approximately five minutes, a nurse asked PO Mcmanamon to remove § 87(2)(b)'s handcuffs in order to take his blood pressure. PO Mcmanamon attempted to remove the handcuffs, however, she was unable to. § 87(2)(b) denied moving or doing anything physical with his body while the officers were attempting to remove his handcuffs. After PO Mcmanamon was unable to remove his handcuffs, PO Caches "jumped, like a crazy man," behind § 87(2)(b) and tried to remove the handcuffs, however, he was also unable to remove the handcuffs. PO Caches then lifted § 87(2)(b)'s hands upward and pushed him to the floor. § 87(2)(b)'s head and face hit the blood pressure machine nearby, and he hit his ear and nose on the floor causing injuries. § 87(2)(b) passed out upon hitting the floor.

§ 87(2)(b) stated that both of his hands were handcuffed when he regained consciousness, and that he was lying on the floor, surrounded by PO Caches and two EMTs. § 87(2)(b) was lifted up, cuffed to a hospital bed, he got onto the bed, his legs were shackled, and he was rolled to a different room accompanied by PO Caches and the EMTs. In a private examination room, a doctor entered and asked § 87(2)(b) to remove his clothing. § 87(2)(b) did not know why the doctor needed him to remove his clothes. § 87(2)(b) stated that PO Caches was squeezing and twisting his hand, and told him to stop moving, although he denied that he was moving. § 87(2)(b) told the doctor he was not able to remove his clothes because he was handcuffed. The doctor told § 87(2)(b) that if he could not remove his clothes then he would have to cut them off. § 87(2)(b) said ok. As the doctor cut § 87(2)(b)'s four shirts off with surgical scissors, by way of his right sleeve along his arm and up to the collar, the doctor inadvertently cut § 87(2)(b)'s neck while cutting through the collars of his shirts. § 87(2)(b) screamed at the doctor, "You cut my face!" and PO Caches told him, "You moved!" § 87(2)(b) denied that he had moved his body.

Shortly thereafter, Captain Robert Conwell of the 68th Precinct responded. § 87(2)(b) told Capt. Conwell that a doctor had cut his face, and that he did not know how it happened. § 87(2)(b) did not inform Capt. Conwell that PO Caches had thrown him to the floor. § 87(2)(a) PHL § 18(6)

§ 87(2)(b) said that when he fell he hit his head, ears, and face, and that the doctor note regarding the reason for the x-ray was to cover for PO Caches. During the interview, § 87(2)(b) showed photos of his swollen ears and face, which he said was caused by PO Caches throwing him to the floor and not by the prior altercation with the driver.

AIDED report #§ 87(2)(b), prepared by PO Caches in regards to § 87(2)(b) in sum and substance reported that § 87(2)(b) was punched in the left side of his face and left ear, sustained pain and swelling, and was transported to § 87(2)(b) (BR16).

TRI report #§ 87(2)(b), prepared by PO Caches (BR17), and the pursuant ISAR prepared by Capt. Conwell (BR18), both in sum and substance reported that § 87(2)(b)'s neck was accidentally lacerated by § 87(2)(b) at § 87(2)(b) while his clothes were being cut off. Neither report makes any mention or remark with regard to any officer throwing or § 87(2)(b) falling to the floor of § 87(2)(b)

§ 87(2)(a) PHL § 18(6)

The investigation also obtained interior security camera footage from within the emergency department of § 87(2)(b) (BR06). A Snagit clip was produced (BR09) to show the relevant section with regard to the allegations as described below.

The clip begins with a female nurse gesturing for PO Caches and PO Mcmanamon to escort § 87(2)(b) over to a hospital bed off of frame left. At the 47-second mark, PO Finnegan and Sgt. Caminiti appear and approached § 87(2)(b) and the officers, whose feet are partially seen on the left side of the frame. At the 1:07 minute mark, PO Caches feet are seen moving to the righthand side of PO Mcmanamon, while § 87(2)(b)'s feet are partially seen on the left side of frame. The female nurse rolls a medical machine over, as § 87(2)(b) is seen briefly lifting one of his feet, and at the 1:20 minute mark, § 87(2)(b)'s feet slide out from beneath him and he falls to the floor. The officers and EMTs attempt to lift § 87(2)(b) however, he appears to be possibly unconscious as he hangs limp from his handcuffed wrists held by the officers. The officers and EMTs turn § 87(2)(b) over to his back and lift him up.

Upon arrival to § 87(2)(b) PO Mcmanamon stated that she and PO Caches escorted § 87(2)(b) inside (BR10). As § 87(2)(b) was evaluated by the nurses, they asked the officers to remove § 87(2)(b)'s handcuffs, and to help him up onto the gurney. While removing his handcuffs, § 87(2)(b) became "belligerent," argued with the officers, moved his arms and body around, and then threw himself on the floor. PO Mcmanamon and PO Caches picked § 87(2)(b) up off the floor, placed him onto the gurney, and handcuffed him to the guardrail. PO Mcmanamon denied that § 87(2)(b) passed out, lost consciousness, and denied that he sustained any injury as a result of falling to the floor. PO Mcmanamon denied that there was any issue removing § 87(2)(b)'s handcuffs other than his non-compliance. PO Mcmanamon denied that she or any other officer threw or pushed § 87(2)(b) to the floor within the emergency department of § 87(2)(b). After viewing the following section of the security camera video, wherein § 87(2)(b) appears to go limp, PO Mcmanamon stated that he did not pass out but that he was not helping them and being uncooperative.

PO Caches stated that at upon arrival to § 87(2)(b) § 87(2)(b) complained that the handcuffs were too tight (BR11). As PO Mcmanamon tried to loosen his handcuffs, § 87(2)(b) suddenly jumped and threw himself, face-first, to the floor. PO Caches denied that he assisted PO Mcmanamon with loosening the handcuffs, and denied that he or PO Mcmanamon had to raise § 87(2)(b)'s arms while attempting to loosen the handcuffs. PO Caches denied that § 87(2)(b) lost consciousness or passed out upon making contact with the floor. PO Caches and the other officers picked § 87(2)(b) up from the floor and helped him onto the hospital bed.

After viewing the above referenced clip, PO Caches denied that there was any issue with § 87(2)(b)'s handcuffs, and stated that he was probably giving his handcuff key to PO Mcmanamon. PO Caches denied that there was any prior indication from § 87(2)(b) that he was going to suddenly fall to the floor, and denied he had complained about feeling dizzy or that he was going to pass out. PO Caches denied that he or PO Mcmanamon threw § 87(2)(b) to the floor of § 87(2)(b) and denied that § 87(2)(b)'s head or face made contact with any of the medical equipment during the fall. When directed to the section of the clip where § 87(2)(b) appears to "go limp," or is unconscious, PO Caches denied that § 87(2)(b) was passed out. PO Caches, in reference to the clip, stated, § 87(2)(b) is actually talking. He just doesn't want to get up."

PO Caches denied that § 87(2)(b) made any statement accusing him of throwing him to the floor at the time.

Later that evening at § 87(2)(b) § 87(2)(b) was brought into a private examination room with a doctor, accompanied by PO Caches. The doctor asked § 87(2)(b) to remove his shirt but he refused to comply. PO Caches did not know why § 87(2)(b) refused to cooperate. As the doctor began to cut his shirt off, § 87(2)(b) moved his body and head around, and when the doctor reached the collar of his shirt, he inadvertently cut § 87(2)(b)'s neck. § 87(2)(b) screamed, pointed at PO Caches, and said that he did it. PO Caches did not know why § 87(2)(b) accused him of being the one who cut his neck, as he was not holding or making any physical contact with him, and was standing approximately five feet away.

Sgt. Caminiti stated that soon after he arrived at § 87(2)(b) § 87(2)(b) got up from the ambulance gurney, and fell to the floor of emergency department (BR12). Sgt. Caminiti did not recall there being any issue regarding the loosening or removing of § 87(2)(b)'s handcuffs that precipitated that fall, and denied that § 87(2)(b) claimed or made any statements at the time that officers had thrown or pushed him to the floor. Sgt. Caminiti denied that PO Caches or PO Mcmanamon threw or pushed § 87(2)(b) to the floor. Sgt. Caminiti did not recall § 87(2)(b) having lost consciousness or passing out as a result of the fall. The officers picked him up, placed him on the hospital bed. Sgt. Caminiti left § 87(2)(b) soon after.

After viewing the clip, Sgt. Caminiti stated that it did not aid in any additional recollection, and that § 87(2)(b) “just suddenly” fell. Sgt. Caminiti added that based upon the video, “You can even see how surprised I was. Everyone was surprised.” Sgt. Caminiti did not remember § 87(2)(b) remarking or stating that he felt dizzy or gave any indication that he was going to pass out, and while he could not specifically recall § 87(2)(b)'s demeanor at the hospital, he said that he was not uncooperative.

Later that evening, Sgt. Caminiti received a call from either PO Caches or PO Mcmanamon, and was informed that § 87(2)(b) § 87(2)(b) had sustained a laceration to his neck caused inadvertently by a doctor cutting his shirt off with medical shears. Sgt. Caminiti did not recall having any further interaction with § 87(2)(b) that day, nor the following day on January 4, 2019.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** be **unfounded**.

Allegation B—Abuse of Authority: Sergeant Christopher Caminiti did not process § 87(2)(b) s complaint regarding officers.

On January 4, 2019, at approximately 10:00 p.m., § 87(2)(b) went to the 68th Precinct stationhouse in order to retrieve his property (BR07). § 87(2)(b) asked the officer at the desk for his watch, the name of his arresting officer from the night before, and said that he wanted to file a complaint against the 68th Precinct. The desk officer returned his watch, said he did not know his arresting officer's name, and told him they do not take complaints there and to look online to file a complaint about the 68th Precinct. § 87(2)(b) described the desk officer as being a white male, who stood approximately 6'0" tall, had a fit build, and was dressed in uniform.

The 68th Precinct tour 3 Roll Call from January 4, 2019, notes that Sgt. Caminiti was assigned as the desk officer (BR13), and the 68th Precinct Command Log notes that Lieutenant Vincent Seminerio took over his post at the desk at 11:15 p.m. (BR19). A search of the NYPD Photo terminal identified Lt. Seminerio as a white male, § 87(2)(b)

Sgt. Caminiti is a white male, § 87(2)(b), and was dressed in uniform. Although Sgt. Caminiti acknowledged that he was assigned as the desk officer of the 68th Precinct on January 4, 2019, he did not recall § 87(2)(b) appearing at the stationhouse or wanting to file a complaint against the precinct that evening (BR12). Sgt. Caminiti added that he also attended traffic court during that tour and may have been away from the desk at the time, though he did not know what time he appeared at traffic court that day. Sgt. Caminiti denied that he refused, or witnessed any other officer refuse to take § 87(2)(b) s complaint regarding officers within the 68th Precinct stationhouse.

Although Sgt. Caminiti generally fits the pedigree of the officer described by § 87(2)(b) and was assigned as the tour 3 desk officer on January 4, 2019, Sgt. Caminiti did not recall seeing § 87(2)(b) that evening, and denied that he or any other officer refused to take § 87(2)(b) s complaint.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint that § 87(2)(b) has been a party to.
- This is the first CCRB complaint filed against PO Mcmanamon, a one-year-member-of-service (see Officer History). There has been one additional complaint filed against PO Mcmanamon, § 87(2)(g).
 - In CCRB #201904081, a force allegation has been pleaded against PO Mcmanamon, which is currently pending CCRB investigation.

- PO Caches, an 11-year-member-of-service, has had four prior CCRB complaints filed against him, with a total of 15 allegations, one of which was substantiated (see Officer History).
§ 87(2)(g) [REDACTED].
 - In CCRB #201802044, a threat to damage property allegation was pleaded against PO Caches, substantiated by the Board, and is awaiting review and penalty by the NYPD.
- Sgt. Caminiti, a seven-year-member-of-service, has had two prior CCRB complaints filed against him, with a total of five allegations, none of which were substantiated (see Officer History). § 87(2)(g) [REDACTED].

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- On June 18, 2019, a FOIL request was sent to the NYC Comptroller's Office to determine whether § 87(2)(b) [REDACTED] has filed a Notice of Claim in regards to this incident, the results of which will be added to the case file upon receipt (BR14).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 7

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date